



United States
Attorney's Office
District of Connecticut



Middletown Man Admits Role in Scheme that Defrauded Connecticut's Medicaid Program of More Than \$1.8 Million

Friday, May 16, 2025

For Immediate Release

U.S. Attorney's Office, District of
Connecticut

David X. Sullivan, United States Attorney for the District of Connecticut, announced that RAMON APELLANIZ, also known as "Kristopher Rockefeller" and "Kris," 40, of Middletown, waived his right to be indicted and pleaded guilty today before U.S. District Judge Stefan R. Underhill in Bridgeport to a health care fraud offense related to a Medicaid fraud scheme.

The Connecticut Medical Assistance Program (CTMAP) is a Connecticut Department of Social Services-administered program that provides medical assistance to low income persons. CTMAP's benefit packages, referred to as "HUSKY" or "Connecticut Medicaid," are jointly funded by the State of Connecticut and the federal government.

According to court documents and statements made in court, Apellaniz previously operated The Gemini Project, LLC ("Gemini"), a Newington-based business that offered counseling to patients with mental, behavioral, and emotional disorders. According to the State of Connecticut's public license database, Apellaniz is not a licensed provider. In 2020, Apellaniz was charged by the state with larceny, health care fraud, and identity theft offenses related to his providing services to numerous Medicaid beneficiaries as a non-licensed provider, and Gemini billing Medicaid for those services, or for services that were not rendered at all. Medicaid paid Gemini and Apellaniz \$909,268 for the false claims. Apellaniz pleaded nolo contendere and, on April 17, 2024, was sentenced in Hartford Superior Court to eight years in prison, execution suspended after 15 months, and five years of parole. He was released from Department of Correction custody on November 19, 2024.

Suhail Aponte was the sole principal and registered agent of Minds Cornerstone LLC, dba Minds Cornerstone Behavior Therapy Services ("Minds Cornerstone"), an Autism Specialist Group, which was registered with the State of Connecticut in June 2021. Aponte also is not a licensed provider. Although Apellaniz does not appear on any of Minds Cornerstone's Medicaid enrollment forms, had no ownership

interest in the company, and had no signatory authority to any of its bank accounts, he conspired with Aponte and ran the company under a pseudonym, including while he was incarcerated in state custody.

Beginning in approximately November 2021, Apellaniz and Aponte used Minds Cornerstone to defraud the Connecticut Medicaid Program by submitting fraudulent claims for applied behavior analysis ("ABA") services to children diagnosed with Autism Spectrum Disorder ("ASD"). The scheme involved billing for Medicaid for services purportedly rendered to patients when company payroll records indicate employees were not compensated for the associated services; direct supervision services purportedly provided by a Board Certified Behavior Analyst ("BCBA") of a behavioral technician, when the corresponding procedure code for behavioral technician services was not billed; services purportedly rendered to patients who were actually in an inpatient hospital; and services purportedly rendered when parents of patients and former employees of Minds Cornerstone confirmed those services did not occur.

Between November 2021 and January 2025, Apellaniz and Aponte submitted or caused to be submitted to Medicaid fraudulent claims that resulted in a loss of approximately \$1,876,617 to the Connecticut Department of Social Services.

The investigation revealed that Apellaniz used some of the funds Minds Cornerstone received to pay a portion of the restitution he owes as a result of his state prosecution.

From approximately May 2022 until November 2024, Aponte was also employed by the State of Connecticut in the Office of Policy and Management.

Apellaniz pleaded guilty to conspiracy to commit health care fraud, which carries a maximum term of imprisonment of 10 years. Judge Underhill scheduled sentencing for August 15. Apellaniz has been detained since his arrest on January 16, 2025.

Aponte pleaded guilty to the same charge on April 30 and awaits sentencing.

Apellaniz and Aponte have agreed to the forfeiture of approximately \$469,000 in funds seized during the investigation, as well their interest in additional bank accounts and two parcels of land in Hartford.

This investigation is being conducted by the Federal Bureau of Investigation, the U.S. Department of Health and Human Services, Office of the Inspector General (HHS-OIG), and the Medicaid Fraud Control Unit of the Connecticut Chief State's Attorney's Office, with the assistance of the Connecticut Department of Social Services. The case is being prosecuted by Assistant U.S. Attorney David T. Huang.

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